

Smt Kiran Bala vs Jugal Kumar on 21 December, 2022

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.L.P. 593/2022 & CRL.M.A.27028/2022
SMT KIRAN BALA

Through: Mr. Ankit Jain and
Chojar, Advocates

versus

JUGAL KUMAR

Through:

CORAM:

HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHANI
ORDER

% 21.12.2022 CRL.M.A. No.27029/2022 (Exemption) Exemption granted, subject to just exceptions. Let requisite compliances be made within 01 week. The application stands disposed of.

By way of the present petition seeking leave to appeal under Section 378(4) of the Code of Criminal Procedure, 1978 ('Cr.P.C') the leave petitioner, who was the complainant in Ct. Case No.511800/16 titled Kiran Bala vs. Jugal Kumar, seeks leave to appeal against judgment dated 06.09.2022, whereby the respondent/accused/her husband, has been acquitted of the offence under section 494 of the Indian Penal Code, 1860 ('IPC').

2. Mr. Ankit Jain, learned counsel appearing for the leave petitioner submits that the main ground on which the learned Metropolitan Magistrate has acquitted the respondent, is that the leave petitioner was unable to establish the second marriage, since she had failed to establish that the respondent and his alleged second wife had performed saptapadi. Mr. Jain submits however, that saptapadi is not an essential ingredient of a Hindu marriage; and section 7(2) of the Hindu Marriage Act, 1955 only includes saptapadi where the customary rites and ceremonies of either of the parties so ordains.

3. Counsel submits that in any case, it was a matter of defence for the respondent to prove that saptapadi was part of such customary rites and ceremonies or that without saptapadi, no marriage was contracted.

4. It is further pointed-out that, in fact the second wife's father Kishan Swaroop has admitted in his statement recorded as CW-2 on 06.12.2017 that "...The marriage of my daughter with the said Jugal Kishore was performed on 13.01.1997. As per our customs, there is no requirement to perform

saptpadi (saat phere) in second marriage, no vedic mantra was required."

5. Upon a prima-facie view of the matter, issue notice on the leave petition, returnable for the next date.

6. Upon the leave petitioner taking steps, let notice be sent to the respondent, by all permissible modes, for the returnable date.

7. Let the notice indicate that reply to the petition be filed within 06 weeks of service; rejoinder thereto, if any, be filed within 04 weeks thereafter; with copies to the opposing counsel.

8. Re-notify on 14th March 2023.

9. The electronic copy of the file is not properly paginated. Let the needful be done by learned counsel for the petitioner in co-ordination with the Registry.

CRL.A. No. _____ (to be numbered)

10. Re-notify on 14th March 2023.

ANUP JAIRAM BHAMBHANI, J DECEMBER 21, 2022/ak